Juno Marchetti

Cross-border portfolio case response

Prepared for Ayana Laurent • Friday 9 January 2026 review

RECOMMENDATION

Retain German fund; consolidate eligible assets

Conditional implementation • financial advice only • tax and legal determinations reserved

1. Case facts and decision boundary

Customer and move. Juno Marchetti moved from Germany to the Netherlands during 2025. The file lacks exact departure, arrival, registration and tax-residency dates. For planning only, this response uses **1 July 2025** as an unconfirmed Dutch-residency start assumption; it is not a tax or legal determination.

Valuation date	Dutch-platform eligible	German fund MV / cost	Cash reserve	Opening total
1 Jan 2026	€780,000	€150,000 / €220,000	€60,000	€990,000
Economic shortfall	Reported 2024	Reported 2025	Data limitation	Scope
€70,000 (cost less MV)	+11.8%	–2.6%	No cash-flow or attribution detail	No annual attribution or reconstructed return

Boundary. The €70,000 is an economic/investment shortfall only. No conclusion is made about tax residency, tax-loss recognition, deductibility, liability, reporting or legal entitlement. Those questions remain with qualified tax specialists and legal counsel.

2. Requirements collide

Requirement	What it says	Decision consequence
GLC-4 — German Legacy Custody Terms	No in-specie transfer; legacy retention allowed; full redemption only, not partial redemption.	Fund cannot be moved in kind or partly sold.
DPC-2 — Dutch Platform Consolidation Standard	Eligible investment portfolio on supported Dutch platform by 31 March 2026.	Full consolidation requires redemption of the fund.
Juno mandate	Do not crystallise the fund’s current investment loss.	A sale requires a documented mandate change; adviser cannot override it.

Unavailable paths. In-specie transfer and partial redemption are not viable treatments under GLC-4. The live choice is therefore between (a) full redemption and consolidation, or (b) retention of the full German fund while consolidating only eligible assets and seeking a documented DPC-2 exception.

3. Option comparison

Criterion	Full redemption & consolidation	Retention + eligible-asset consolidation
Opening invested allocation	€928,500 Dutch platform; €0 German; €60,000 cash	€780,000 Dutch platform; €150,000 German; €60,000 cash
Requirement fit	Meets DPC-2 by moving entire investable portfolio.	Respects GLC-4 and no-crystallisation mandate; needs DPC-2 exception.
Immediate economics	Redeem €150,000; 1.00% charge = €1,500; net €148,500. €70,000 gross exchange shortfall remains unrealised economically (not a tax conclusion).	€70,000 gross exchange shortfall remains unrealised economically (not a tax conclusion).
Liquidity / access	One supported platform for investable assets; cash reserve preserved.	€60,000 reserve preserved, but legacy fund access and administration continue under custodian terms.
Costs / operations	0.55% Dutch opening-balance fee; one-time €1,500 sale charge; simpler one-platform administration after sale.	0.55% Dutch fee-plan 0.85% legacy opening-balance fee and €1,200 fixed annual charge; dual-custody administration.
Mandate / reversibility	Irreversible sale without Juno mandate change; higher modelled pension value if eligible specialist facts are pending; does not promise recovery to €220,000 cost by 2028.	Keeps decision reversible while specialist facts are pending; does not promise recovery to €220,000 cost by 2028.

4. Scenario view and recommendation

2028 terminal value (EUR)	Full redemption & consolidation	Retention + eligible-asset consolidation	Full redemption less retentio
Downside	€845,067	€830,250	€14,817
Base	€1,120,793	€1,107,780	€13,013
Upside	€1,214,605	€1,205,967	€8,638

Scenario inputs and scope. Dutch-platform gross returns are –5% / 5% / 8% (downside / base / upside); German-fund gross returns are –8% / 3% / 7%; cash earns 1.5% in every case. No contributions, withdrawals, tax, foreign-exchange effect or inflation are modelled. **Interpretation.** Full redemption has the higher modelled 2028 terminal value in all three supplied scenarios (approximately €14,817 downside, €13,013 base and €8,638 upside). These are deterministic planning cases, not forecasts or guarantees. Different Dutch and German return assumptions and custody charges drive the spread.

Financial recommendation for Friday. **Retain the German fund for now, transfer the €780,000 of eligible assets, preserve the €60,000 cash reserve, and seek a documented DPC-2 exception.** This is the single recommended treatment because the recorded mandate limits authority to crystallise the current investment loss. Do not redeem unless Juno gives a documented mandate change after the relevant tax/legal determinations.

5. Conditional disposition and dated action plan

Case status	Prior: Pending review	Authorized now: Conditional implementation
Scope of authority	Proceed only with eligible-asset consolidation and exception request. No funded redemption.	Implement only the eligible-asset consolidation under the no-crystallisation mandate, subject to DPC-2 exception approval, written specialist view, custodian/platform confirmations and Juno acknowledgement.

When / owner	Action and hand-off
Fri 9 Jan 2026 — Damaris Macaulay	Record the status change and circulate this conditional recommendation to Ayana Laurent, Juno and counsel; document that no irreversible redemption is authorised.
By Mon 12 Jan 2026, 17:00 CET — Damaris	Ask the platform to preserve or renew the pricing reservation for the eligible-asset transfer; if unavailable, record lapse and obtain refreshed pricing before implementation.
Mon–Tue 12–13 Jan 2026 — Damaris + Juno	Collect and archive departure, arrival, registration and relevant residency dates. Obtain Juno’s written acknowledgement of retention and the no-crystallisation mandate.
By Tue 13 Jan 2026 — Damaris + custodian/platform	Obtain written confirmation of GLC-4 mechanics and all applicable charges; submit a documented DPC-2 exception/variance request for the retained fund.
Wednesday 14 January 2026 onward — Obtain specialist views + counsel	Obtain written specialist views on residency, sale treatment, tax-loss/deductibility, reporting and contractual/legal consequences. Re-open the decision if conclusions, mandate c

Review trigger: confirmed residency facts, written specialist advice, DPC-2 exception decision, a mandate change, or a material fund-value change requires reassessment before redemption.